

Court No. - 46

Case :- WRIT - C No. - 27499 of 2023

Petitioner :- Madarsa Dargah Aaliya Islamiya Shareef Nagar
And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Zainul Abdin

Counsel for Respondent :- C.S.C,Pranjal Mehrotra

Hon'ble Ashwani Kumar Mishra,J.

Hon'ble Syed Aftab Husain Rizvi,J.

Petitioner is aggrieved by the demand notice issued by the Prescribed Authority/Executive Officer, Electricity Distribution Division-3, Moradabad, calling upon the petitioner to deposit Rs.6,91,850/-.

Various arguments are advanced in order to show that the said amount is not due and payable to the petitioner.

Sri Pranjal Mehrotra, appearing on behalf of respondents states that the petitioner has remedy of challenging the determination of liability before concerned authority, by virtue of clause 6.5B of Uttar Pradesh Electricity Supply Code. It is submitted on behalf of the respondents that the claim raised before this Court can be considered by the authority concerned, in accordance with law.

In view of the stand taken by the respondent, we permit the petitioner to approach concerned authority under clause 6.5B of U.P. Electricity Supply Code. It goes without saying that objection raised in the matter for quantifying the amount be duly examined by the authority concerned, by passing a reasoned order, within six weeks from the date of presentation of a certified copy of this order before it. Subject to the observations made hereinabove, this writ petition is disposed of.

Order Date :- 17.8.2023

MN/-